

We hold that the appellants do have standing to maintain this suit. Our decisions plainly support this conclusion. Many of the cases have assumed rather than articulated the premise in deciding the merits of similar claims.²⁶ And *Colegrove v. Green*, *supra*, squarely held that voters who allege facts showing disadvantage to themselves as individuals have standing to sue.²⁷ A num-

the State Board of Elections, and as such they are charged with the duty of appointing the Election Commissioners for all the counties of the State of Tennessee, the organization and supervision of the biennial elections as provided by the Statutes of Tennessee, Chapter 9 of Title 2 of the Tennessee Code Annotated, Sections 2-901, et seq.

"That this action is brought against the aforementioned defendants in their representative capacities, and that said Election Commissioners are sued also as representatives of all of the County Election Commissioners in the State of Tennessee, such persons being so numerous as to make it impracticable to bring them all before the court; that there is a common question of law involved, namely, the constitutionality of Tennessee laws set forth in the Tennessee Code Annotated, Section 3-101 through Section 3-109, inclusive; that common relief is sought against all members of said Election Commissions in their official capacities, it being the duties of the aforesaid County Election Commissioners, within their respective jurisdictions, to appoint the judges of elections, to maintain the registry of qualified voters of said County, certify the results of elections held in said County to the defendants State Board of Elections and Secretary of State, and of preparing ballots and taking other steps to prepare for and hold elections in said Counties by virtue of Sections 2-1201, et seq. of Tennessee Code Annotated, and Section 2-301, et seq. of Tennessee Code Annotated, and Chapter 164 of the Acts of 1949, inter alia."

The question whether the named defendants are sufficient parties remains open for consideration on remand.

²⁶ *Smiley v. Holm*, *supra*, at 361 ("citizen, elector and taxpayer' of the State"); *Koenig v. Flynn*, *supra*, at 379 ("citizens and voters' of the State"); *Wood v. Broom*, *supra*, at 4 ("citizen of Mississippi, a qualified elector under its laws, and also qualified to be a candidate for election as representative in Congress"); cf. *Carroll v. Becker*, *supra* (candidate for office).

²⁷ Mr. Justice Rutledge was of the view that any question of standing was settled in *Smiley v. Holm*, *supra*; MR. JUSTICE BLACK stated "that appellants had standing to sue, since the facts alleged show that